

# Build Your Wrongful Termination Case

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## A Step-by-Step Guide to Documenting What Happened, Filing Your Complaints, and Building a Case File That Holds Up



You just got fired. Maybe you saw it coming. Maybe you didn't. What you know is that something felt *wrong* about it—the timing, the reasons they gave, the way your complaints got you nothing but a target on your back. Maybe it was the pregnancy announcement you made the same week they "restructured" your position. Maybe it was the manager who started leaving you off meetings after you reported harassment. Maybe it was the termination that came three days after you filed a complaint with HR.

Now you're sitting with the aftermath: no job, no clarity, and a growing suspicion that what happened to you was illegal. You've probably already Googled "wrongful termination" a dozen times and landed on pages that say "contact an attorney" without telling you what to actually *do* while you're figuring that out. Maybe you've already called a few lawyers and gotten voicemail—or worse, appointments three weeks out with no guarantee they'll take your case.

Here's the thing: there's a window. Statutes of limitation exist, and evidence disappears. Slack messages get deleted. Managers forget. Companies restructure their paper trails. The HR person who documented your "performance issues" conveniently left for another job right before you needed that record. The worst thing you can do right now is freeze.

This guide won't replace an attorney. What it will do is give you a concrete, sequenced framework to document what happened, file your complaints correctly, and build a case file that actually means something when you do sit down with a lawyer—or if you ever need to represent yourself. You don't have to figure this out alone, and you don't have to start from zero.

Over the next four parts, you'll move through the full sequence: preserving your evidence before it vanishes, understanding the legal framework behind your claim, filing your administrative complaints the right way, and organizing everything so a skilled attorney can hit the ground running—or so you can proceed with confidence if you represent yourself.

Let's get to work.



## **Part 1: Preserve Everything (Before It Disappears)**

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Your employer controls the systems you used every day. The moment you walk out the door—sometimes the moment your laptop is remotely wiped—you lose access to your email, your message history, your performance reviews, and everything stored on company servers. What you do in the next few days will determine whether you have evidence to work with.

This part walks you through securing every relevant piece of documentation before it's gone.

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# Chapter 1: Audit and Secure Your Digital Footprint

## What You're Really Doing Here

Before you lose access to anything work-related, you need to take inventory of every system you used and every piece of data sitting on those systems. This isn't just about emails. It's about building a complete picture of your employment: your performance history, your communications, the complaints you made, and the responses you received. Think of it as an archaeological dig—but the site gets demolished in a week.

## The Systems to Check

Go through this list mentally and physically:

**Email.** If you used a company email account (Outlook, Gmail for Work, etc.), you need to export everything relevant. Screenshot folders, don't just open them—some companies wipe access immediately upon termination and you may not have time to browse.

**Messaging platforms.** Slack, Microsoft Teams, Google Chat, Discord—whatever your workplace used. These are often the most damning evidence in employment cases because people are less guarded in chat than in email. Get screenshots of every relevant conversation, including group chats where decisions were discussed, where you reported concerns, and where managers discussed your performance or the termination.

**Performance review systems.** Documents in Workday, BambooHR, Lattice, or whatever platform they used. Export your performance reviews, goal sheets, 360-feedback, and any written commendations or warnings.

**HR systems.** Anything related to your benefits, leave requests, accommodation requests, or HR complaints. If you filed a complaint through an internal system, screenshot it now—even if it was "resolved."

**Shared drives and project management tools.** Confluence, Notion, Google Drive, Asana, Jira—if you contributed to projects that showed your performance or workload, screenshot relevant pages.

## How to Screenshot Properly

Not all screenshots are created equal. Here's what makes a screenshot usable:

- **Capture the full context.** Include the date, time, sender/recipient fields, and the URL bar in your browser. This matters because metadata can be stripped when images are shared.
- **Use your phone camera as a backup.** Photograph your screen rather than using a screenshot tool—it's harder for someone to claim the image was digitally altered.
- **Shoot the metadata.** If a document has properties (author, date created, edit history), screenshot those too. A termination letter from January 3rd that was "last modified" on January 2nd tells a very different story than one modified on January 1st.
- **Do not edit.** Cropping is fine. Cropping out the sender's name is not—it can undermine the credibility of your evidence.

## Documenting Deletion Attempts

If you notice evidence is being deleted—or you suspect it's about to happen—document that too. Screenshot any systems access warnings, any messages that suddenly disappear from channels, any emails that bounce back or show "deleted" status. Document destruction of evidence is a serious legal matter, and a record of it strengthens your case.

This is also the moment to note: do **not** try to access systems you no longer have authorization for. Do not hack into accounts or use former colleagues' credentials. Preserve what you have access to, and preserve what you have the right to have.

## **What "Destruction of Evidence" Means in Legal Terms**

Companies have a legal duty not to destroy evidence once litigation is reasonably anticipated. If you've already filed a complaint or consulted an attorney, or if a reasonable person would expect legal action, deliberate destruction of evidence—called "spoliation"—can result in sanctions against the employer in court. Document any suspicious timing: evidence deleted two days after your termination letter looks a lot worse than evidence deleted six months prior.

## **Action Steps**

- 1.** Right now, while you still have access: screenshot your last 30 days of email with relevant colleagues, managers, and HR.
- 2.** Screenshot your most recent performance review and any performance improvement plans (PIPs).
- 3.** Screenshot any HR complaints you filed and their outcomes.
- 4.** Screenshot your last 6 months of relevant Slack or Teams messages with supervisors and HR.
- 5.** Photograph (with your phone) any physical documents in your possession—offer letters, employee handbooks, benefit statements, written warnings.
- 6.** Save everything to a personal cloud account (personal Google Drive, Dropbox, iCloud)—not your work device or work account.

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## Chapter 2: Build Your Chronological Evidence File

### Why Organization Matters

A stack of 200 screenshots is not a case file. A well-organized folder system with a clear timeline is something an attorney can work with in 20 minutes. A disorganized pile of screenshots is something an attorney charges you to sort through—and may decline to do altogether.

The goal here is simple: create a system that lets you—and eventually your attorney—find any piece of evidence in under 60 seconds and understand its relevance immediately.

### The Folder Structure

Set up a master folder on your personal computer or cloud storage called "Wrongful Termination Case – [Your Name] – [Date of Termination]." Inside it, create the following subfolders:

- **01\_Termination** – The termination letter, exit interview notes, any severance documents, final paycheck records
- **02\_Performance\_History** – All performance reviews, PIPs, commendations, goal documents, promotion denials
- **03\_Complaints\_Filed** – Any internal complaints you made, HR reports, formal grievances, accommodation requests
- **04\_Discrimination\_Evidence** – Any communications showing protected-class-related conduct (references to age, gender, race, disability, religion, etc.)
- **05\_Retaliation\_Evidence** – Communications showing adverse action following protected activity (complaints, EEOC filings, leave usage)
- **06\_Witness\_Info** – Contact information for witnesses and any statements you've gathered
- **07\_Company\_Policies** – Employee handbook, code of conduct, anti-harassment policy, any policy documents you received

- **08\_Contracts** – Offer letter, employment agreement, non-disclosure agreements, any signed acknowledgments
- **09\_Damages** – Job search records, rejection letters, pay stubs, benefits statements, expense records
- **10\_Reference\_Materials** – Legal statutes relevant to your case, deadline calendar, attorney notes

## Building Your Master Timeline

This is the most important organizational tool you'll create. Open a simple document—Word, Google Docs, even a spreadsheet—and create a two-column table: **Date** and **Event**.

Start with your first day of employment and work forward. For each entry, note:

- The date of the event
- A plain-language description (e.g., "Received performance review rating 'meets expectations'; manager said I was 'on track'")
- The source document (e.g., "Performance review stored in Workday, screenshot saved in 02\_Performance\_History")

Be ruthlessly factual. "They fired me because I'm old" is your interpretation. "Manager Jones said at the March 15th meeting, 'We need to get some younger people in here,'" is a documentable event.

As you build this timeline, you'll start seeing patterns. The timing of complaints. The moment a new manager arrived. The sudden shift in how you were treated after you disclosed a disability. This timeline becomes the spine of your entire case.

## What Goes In—and What Stays Out

Include everything that touches your employment relationship and the termination. Include documents that seem minor—a friendly email from a coworker about a project can establish your performance track record. Include things that make you look bad too. Attorneys need the full picture, and hiding unflattering evidence at this stage will hurt you later.

Exclude personal notes, journal entries about how the situation made you feel (save that for your damages documentation), and speculation about motivations. Those belong in a separate personal log, not in your case file.

## Action Steps

1. Create the folder structure described above in your personal cloud storage today.
2. Sort every screenshot and document you've captured into the appropriate folder.
3. Create a new document called "Master Timeline" and populate it with every work-related event you can remember, working from your start date forward.
4. For each timeline entry, cite the source file and folder location.
5. Note any gaps in your documentation where events occurred but no record exists—this is useful intel for your attorney.



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## Chapter 3: Identify and Contact Witnesses While Memory Is Fresh

### Why Timing Is Everything

Memories fade. Coworkers get new jobs, move away, or simply stop wanting to be involved. Witnesses who seemed supportive a week after your termination may become reluctant six months later. And some witnesses—one of your managers, an HR representative—may simply become unreachable once they've left the company.



You need to reach out to relevant witnesses now, while the events are fresh and their recollection is intact.

## Who Counts as a Witness

A witness isn't just someone who saw the termination itself.

Relevant witnesses include:

- **Coworkers who observed the conduct you're alleging.** If you were passed over for promotion after announcing your pregnancy, a coworker who was in the meeting counts.
- **People you complained to.** If you told a trusted manager about the harassment and they did nothing, that manager's inaction is a fact. That manager's testimony about what they observed is evidence.
- **People who heard relevant statements.** "The boss said he was tired of dealing with old people" is a statement, not an observation—but the coworker who heard it is a witness to that statement.
- **People who can establish a pattern.** If your supervisor consistently made discriminatory comments to multiple employees, those employees are each potential witnesses.
- **People who can speak to your performance.** A colleague or subordinate who can attest to your competence, work ethic, and the quality of your contributions can be crucial counter-evidence to a "performance-based" termination.

## How to Ask a Witness for Help

You don't need to be a detective. A simple, honest conversation is enough. Here's a script you can use:

"I've been dealing with what I believe was a wrongful termination, and I'm trying to document what happened accurately. You were present during [X event], and I wanted to check in with you about your memory of it while it's still fresh. I'm not asking you to do anything legal right now—I'm just trying to make sure I have the facts straight. Would you be comfortable doing a brief call with me to walk through what you observed? I want to be respectful of your time."

Notice what's absent: no pressure, no demands, no leading questions. Witnesses who feel pressured will back away. Witnesses who feel respected will often go further than you'd expect.

## What to Ask Witnesses

In your initial conversation, focus on:

- **Specific events they witnessed** — dates, locations, who was present, what was said
- **Relevant communications** — any emails, messages, or conversations they had with management about you or about the situation
- **Their observations** — what did they see? What stood out to them at the time?
- **Performance impressions** — how did they view your work? Your treatment compared to others?

Do not ask witnesses leading questions like "You remember how discriminatory Bob was, right?" That's coaching, and it's legally problematic. Ask open-ended questions and let them describe what they experienced.

## Documenting Witness Statements

After your conversation, write up your own summary of what they said while it's fresh. Note the date, the method (phone, in-person, video call), and the key points. Send a follow-up message thanking them and confirming your understanding: "As I understood our conversation, you observed X, Y, and Z. Please let me know if I got anything wrong." This creates a contemporaneous record.

You cannot force anyone to give a statement, and you should not try. Respect a "no." But do ask, because many people who were on the periphery of events don't realize they have relevant information until you prompt them.

## Building Your Witness Log

Create a simple document with one entry per potential witness:

- **Name, role, and contact information**

- **Relationship to you** (coworker, supervisor, HR, subordinate, etc.)
- **Events they witnessed** (brief description)
- **Have you contacted them?** (Yes/No/Pending)
- **Their willingness to participate** (Supportive/Neutral/Unwilling/Unknown)

## Action Steps

1. Make a list of every person who witnessed relevant events—write down names immediately, don't rely on memory.
2. Open a witness log using the template above.
3. Reach out to your most important witnesses (those with direct knowledge of key events) within the next week.
4. For each witness conversation, write a summary within 24 hours and save it in your **06\_Witness\_Info** folder.
5. Never pressure a witness or ask them to lie or exaggerate. Your integrity in this process matters.



**Key Takeaway for Part 1:** In the days after your termination, your single most important job is evidence preservation. Screenshot everything, organize it systematically, reach out to witnesses now, and store everything on personal devices—not company systems. What you secure in the next two weeks will define what your case has to work with.



## Part 2: Know What You Have (Legal Framework)

You have your evidence. You have your timeline. Now you need to understand what legal claims your situation actually supports—and whether those claims are viable.

This part is where most people go wrong. They either assume they have a case because they *feel* wronged (and they don't have the legal elements to prove it), or they assume they have nothing because the law feels complicated (and they actually do). We're going to fix both problems.



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## Chapter 4: Identify Which Laws Were Violated

### The Difference Between a Wrong and a Legal Claim

Not every unfair termination is illegal. Companies can terminate people for bad reasons, dumb reasons, and reasons that feel personal. Being fired because your manager didn't like you, because the company lost a client, or because of a personality conflict is legal—awful, but legal.

A legally actionable wrongful termination requires that the termination violated a specific law. That means identifying which law, if any, was broken—and that requires matching your facts to the elements of specific statutes.

### Federal Laws That Apply to Workplace Termination

These are the main federal statutes that govern wrongful termination:

**Title VII of the Civil Rights Act (42 U.S.C. § 2000e)** prohibits employment discrimination based on race, color, religion, sex (including pregnancy, sexual orientation, and gender identity), and national origin. If you were fired because of any of these protected characteristics—or because of a combination of your sex and another trait (like being a Black woman fired while a similarly situated white man was not)—Title VII applies.

**The Age Discrimination in Employment Act (ADEA)** protects workers 40 and older from termination based on age. If your employer replaced you with someone substantially younger, or if

management made age-related comments, this statute is relevant. Note: ADEA doesn't protect people under 40, but some state laws do.

**The Americans with Disabilities Act (ADA)** and the **Rehabilitation Act** prohibit termination based on disability—or based on an employer's perception that you have a disability. If you were fired after requesting an accommodation, after disclosing a disability, or because of symptoms related to a medical condition, the ADA may apply. This includes both physical and mental health conditions that substantially limit major life activities.

**The Family and Medical Leave Act (FMLA)** protects employees who took legally protected medical or family leave. If you were fired shortly after returning from FMLA leave, after requesting FMLA leave, or in the middle of an FMLA-approved leave period, that's a red flag for retaliation under this law.

**Title I of the Genetic Information Nondiscrimination Act (GINA)** prohibits discrimination based on genetic information. This is less common but worth knowing if your employer requested or obtained genetic information about you or your family.

## **Protected Activity: The Retaliation Layer**

Even if your termination wasn't because of a protected characteristic, it might have been because you reported one. Retaliation is a separate legal claim from discrimination, and it's available under most of the statutes above.

Protected activity includes:

- Filing an internal HR complaint about discrimination or harassment
- Reporting discrimination to the EEOC or a state agency
- Participating in an EEOC investigation or lawsuit
- Requesting an accommodation under the ADA
- Taking FMLA leave
- Reporting workplace safety violations (OSHA-protected activity)
- Whistleblowing on fraudulent or illegal company conduct

The pattern is usually: you engaged in protected activity → your employer took an adverse action (termination, demotion, poor review, reduced hours). The closer these events are in time, the stronger your retaliation claim.

## State Laws: Don't Skip These

Every state has its own employment discrimination statutes, and many of them are **stronger** than federal law. Some states prohibit discrimination based on additional protected categories (sexual orientation, gender identity, marital status, veteran status, criminal history). Some have longer statutes of limitations. Some allow broader damages.

Whatever state you worked in, look up your state's equivalent of the EEOC—it will have a name like the California Civil Rights Department (CRD), New York State Division of Human Rights (NYSDHR), Texas Workforce Commission Civil Rights Division, or similar. This matters.

## How to Match Your Facts to a Claim

Go back to your master timeline. For each potential claim, ask:

- **Discrimination:** Does the timeline show I possessed a protected characteristic? Did adverse action occur? Was there a similarly situated person of a different protected class who was treated better? Were there comments, emails, or actions reflecting discriminatory motive?
- **Retaliation:** Did I engage in protected activity? Did adverse action occur after that activity? Was there a legitimate, non-retaliatory reason for the termination—or does the timing tell a different story?
- **Contract violation:** Did I have an employment contract (even an implied one)? Does the employee handbook contain language that could be construed as a contract? Was I terminated in violation of its terms?

Document the evidence supporting each potential claim in your case file. You don't need a perfect case at this stage—you need to know which laws might apply and why.

## Action Steps

1. Review your timeline and note each potential protected-class characteristic relevant to your situation (race, sex, age, disability, etc.).
2. For each characteristic, identify: evidence that the employer knew about it, evidence of differential treatment, and any direct discriminatory statements.
3. Identify every instance of protected activity (complaints, accommodation requests, leave, reports to agencies).
4. Cross-reference each protected activity with the timeline to identify temporal proximity to any adverse action.
5. Research your state's employment discrimination statute (search "[your state] employment discrimination law").
6. Create a new document in your case file listing each potential claim, the applicable law, and the evidence supporting it.



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## Chapter 5: Calculate Your Deadline (It Matters More Than You Think)

### Why This Is the Most Urgent Thing in This Guide

Statutes of limitation are firm. Miss them, and your case is over—not weakened, not paused, **over**. No matter how strong your evidence is, you lose the legal right to sue if you don't file within the deadline.

This is why this chapter comes before case assessment. You need to know your deadline **today**, even if you're not sure yet whether you have a case.

## **Federal Filing Deadline: The EEOC Charge Window**

For most federal discrimination claims under Title VII, the ADEA, the ADA, and GINA, you must file a charge with the EEOC **before** you can sue in federal court. The deadline to file with the EEOC is **300 days** from the last discriminatory act in states with their own anti-discrimination agencies (called deferral states), or **180 days** in states without such agencies.

Most states are deferral states. You can check by looking up your state's EEOC field office. If you file with your state's fair employment agency, that filing is typically "cross-filed" with the EEOC automatically.

But here is the critical point: the 300-day clock starts on the **last discriminatory act**—not necessarily the date you were fired. If you were demoted in March and fired in June, the clock for the demotion may have started in March. If you received a discriminatory performance review six months before termination, and you're still within the window to challenge **that**, you need to know.

**The ADEA has a shorter deadline of 300 days in deferral states and 180 days in non-deferral states—but there's a twist.** Under the ADEA, you must also file a charge with the EEOC before you can sue, but if you want to pursue a jury trial in federal court, you must separately notify the EEOC of your intent to sue within the ADEA's own time limits. This is sometimes called the "section 626(d) notice." Get this wrong and you lose your ADEA claim.



**For FMLA claims**, the statute of limitations is generally **two years** of the last discriminatory act (three years for willful violations). This is a shorter window than some other claims, so don't assume you have plenty of time.

## State Deadlines

State statutes of limitation for employment discrimination claims vary widely:

- Many states have their own charge-filing deadlines of 300 days or one year from the discriminatory act.
- For common-law wrongful termination torts, the statute of limitations is typically the state's general personal injury window—one to three years in most states.
- For breach of an employment contract, check your state's contract statute of limitations (often two to four years).

## Tolling and Exceptions

Certain circumstances can extend your deadline:

**Equitable tolling** pauses the clock when the employer took active steps to conceal the discriminatory nature of the termination, or when you were unable to file due to circumstances beyond your control (like serious illness or being out of the country).

**Disability and age** can sometimes toll deadlines—the Age Discrimination in Employment Act has specific provisions, and mental disability can sometimes extend deadlines.

**Ongoing violations** mean that if the discriminatory practice is continuous—ongoing harassment, a continuing discriminatory policy—the clock may not start until the last act.

**EEOC mediation and investigation** generally tolls (pauses) your deadline, so time spent in the EEOC process doesn't count against you. But confirm this with your attorney, because rules vary.

## Building Your Deadline Calendar

Create a calendar entry right now for your primary EEOC/state filing deadline. Then build out from there:

1. **EEOC charge deadline** (300 or 180 days from last discriminatory act—calculate the exact date).
2. **State agency charge deadline** (may be the same date or different).
3. **60 days after EEOC dismissal** (if EEOC closes your charge without acting, you generally have 90 days from the dismissal notice to file in federal court—but some courts apply 90 days, not 60, so check your circuit).
4. **Any applicable state tort deadline** (one to three years, depending on state).
5. **FMLA deadline** (two to three years from last act).

Add buffer time. If your deadline is June 30, your target filing date should be May 31. Build in at least a four-week buffer for administrative processing time.

## Action Steps

1. Identify your last discriminatory act date (from your timeline) and calculate 300 days forward (or 180 if you're in a non-deferral state—look this up for your state).
2. Write down that date and mark it as **DO NOT MISS**.
3. Calculate any state filing deadlines separately and note the earlier date.
4. Calculate any FMLA or contract statute of limitations if applicable.
5. Create a deadline calendar and set reminders 90, 60, 30, and 7 days before your earliest deadline.

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## Chapter 6: Assess Case Viability Before Investing

### "I Think I Have a Case" vs. "This Is Legally Viable"

This distinction matters enormously, and it's where most people need a reality check. A legally viable employment discrimination case has specific elements that can be satisfied with evidence. A "I was treated unfairly" case does not.

The good news: you can do a rough preliminary assessment yourself, before you ever sit in an attorney's office. This isn't a substitute for professional legal judgment—but it's enough to know whether you should spend money on a consultation or invest significant time building a case.

### The Evidence Weight Framework

Rate each of your potential claims on these five factors:

#### 1. Documentary evidence weight (0–3)

- 0 = No documents supporting your claim; relies entirely on testimony
- 1 = Circumstantial documents suggesting impropriety but not conclusive
- 2 = Direct documentary evidence (written communications, policies, performance records showing differential treatment)
- 3 = Multiple strong documents; smoking-gun evidence (an email using a slur, a written policy applied discriminatorily)

#### 2. Witness corroboration (0–3)

- 0 = No witnesses to relevant events
- 1 = One witness who can attest to some relevant facts
- 2 = Multiple witnesses to key events, or one witness with direct, strong testimony

- 3 = Multiple witnesses, including witnesses within management or HR

### **3. Direct evidence of discriminatory intent (0–3)**

- 0 = No direct evidence; relying entirely on circumstantial evidence
- 1 = Vague comments, ambiguous statements
- 2 = Clear discriminatory comments, emails, or written statements not directly linking to your termination but showing bias
- 3 = Direct statements linking protected status to adverse employment action

### **4. Employer's history and pattern (0–3)**

- 0 = No known history of discrimination
- 1 = Isolated incident; no other known victims
- 2 = Known pattern of similar treatment toward other employees in your protected class
- 3 = Pattern plus evidence of prior complaints, lawsuits, or EEOC charges

### **5. Temporal proximity (0–3)**

- 0 = Long delay between protected activity/disclosure and adverse action (more than a year)
- 1 = Moderate delay (6–12 months)
- 2 = Short delay (2–6 months)
- 3 = Very short delay (days to weeks)

**Scoring guide:** Add up your scores across the five factors.

- **12–15:** Strong case. Attorney consultation is worthwhile.
- **8–11:** Moderate case. May be viable but needs development; attorney consultation warranted.
- **5–7:** Weak-to-moderate case. Proceed cautiously; get an attorney's honest assessment before investing heavily.

- **Below 5:** Consult an attorney to determine if there's a dimension you're not seeing. If the assessment is still poor, consider other avenues (internal complaint, settlement negotiation) before litigation.

## The "Same Actor" Problem

Defense attorneys will immediately raise the "same actor" defense: if the same person who fired you was also the person who hired you, they'll argue that the termination couldn't have been discriminatory because the same decision-maker clearly didn't discriminate when they chose to employ you. This is not always fatal to a case, but it's a significant factor courts weigh.

If you're assessing your own case, note this dynamic honestly: was the person who hired you the same person who fired you? If so, your case needs other evidence of discriminatory motive to succeed—temporal proximity, comparator evidence, direct statements, or pattern evidence.

## When to Cut Losses

Not every situation supports a viable legal claim, and knowing that early is valuable. If your case scores low across the board and an attorney confirms it's weak, consider:

- Filing an internal complaint anyway (it creates a record and may trigger internal accountability)
- Pursuing a negotiated severance agreement
- Focusing your energy on finding your next job (damages calculations include front pay, which is hurt by delay)
- Consulting with an employment attorney about a demand letter, even without litigation

The goal is not to sue. The goal is justice and compensation. Sometimes that comes through a courtroom. Sometimes it comes through a negotiated resolution. Either way, you need an honest assessment of what you have before you decide how to proceed.

## Action Steps

1. Score your primary claim using the framework above. Be honest.

2. Score any secondary claims.
3. Look up the "same actor" defense and note whether it applies to your situation.
4. If your score is below 8, schedule a brief attorney consultation specifically to get a reality check—many attorneys offer 30-minute paid consultations for this exact purpose.
5. If your score is 8 or above, proceed with Part 3 of this guide and prioritize your attorney consultation.



**Key Takeaway for Part 2:** Wrongful termination law has specific requirements. Match your facts to the applicable statute, calculate your deadline *today*, and do an honest preliminary viability assessment before you invest time and money. Knowing whether you have a real legal claim—and knowing which claim it is—turns your suspicion into something actionable.



## Part 3: File Correctly (The Administrative Layer)

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You have your evidence. You understand the legal framework. Now you need to navigate the administrative process that precedes any lawsuit. Skipping or mishandling this step can kill your case before it begins.

This part covers exactly how to file with the EEOC and state agencies, what to say (and not say), and how to document your damages so you're ready for settlement or litigation.

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## Chapter 7: File With the EEOC (The Right Way)

### Why the EEOC Filing Is Not Optional

Here's the rule: for most federal employment discrimination claims, you **must** file a charge with the EEOC before you can sue in federal court. This is called "exhausting your administrative remedies." If you skip the EEOC filing—or file it incorrectly—you lose your right to bring a Title VII, ADEA, or ADA claim in federal court, regardless of how strong your case is.

The EEOC filing is a prerequisite, but it's also an opportunity. A well-crafted EEOC charge does more than satisfy a procedural requirement—it begins building your litigation narrative, puts the employer on formal notice, and creates a paper trail that can be invaluable.

### Completing the EEOC Charge Form

The EEOC charge form (Form 5) is available online at [eeoc.gov](https://eeoc.gov). You can file in person at your local EEOC field office, by mail, or through the EEOC's online portal. The form asks for basic information about you, your employer, and the nature of your complaint.

The most important section is the narrative: **"State the particulars of the discrimination."** This is where you tell your story. And most people get this wrong.

### How to Write the Narrative (And How to Avoid Destroying Your Case)

#### Do:

- Write a factual, chronological account of the events leading to your termination, focusing on what **happened**—actions taken, statements made, dates and times.

- Lead with the strongest evidence. If you have a manager's email using discriminatory language, put it in the first paragraph.
- Identify your protected characteristic (race, sex, age, disability, etc.) and connect it clearly to the adverse action.
- Note any protected activity (complaints, accommodation requests, leave) and the temporal proximity to adverse action.
- Use plain, professional language. You are writing a legal document, not a social media post.

#### **Do not:**

- Include every grievance you've ever had at the company. Stick to events directly relevant to the discrimination or retaliation.
- Use inflammatory language or characterize the employer as evil or malicious. Keep it factual.
- Make legal conclusions you can't back up. "I was fired because of my race" is a conclusion. "My manager said 'we're going in a younger direction' and terminated me three weeks later" is a fact.
- Include your personal feelings about the termination. The EEOC narrative is not your therapy session.

## **What "Cross-Filing" Means**

In most states, when you file with the EEOC, your charge is automatically cross-filed with your state's fair employment agency (if your state has one). This means you don't always have to file separately. However, some attorneys recommend dual-filing even when cross-filing is automatic, because it creates a clearer administrative record and can extend your state-level rights.

Check your state's requirements. California's CRD, for instance, requires filing with them directly in some circumstances, and the cross-filing rules have nuances. Don't assume the EEOC handles everything for your state.

## **Requesting a Right to Sue Letter**

After you file a charge, the EEOC has two options: investigate or offer mediation. Either way, you can request a Right to Sue letter after 180 days have passed since you filed your charge and the



EEOC has not resolved it. Most people wait the 180 days and request the letter, because EEOC investigations routinely take two to three years and requesting the letter lets you proceed to court on your own timeline.

To request a Right to Sue letter, file a written request (Form 261A or a letter) with the EEOC office handling your charge. Once you receive the letter, you typically have 90 days to file a lawsuit in federal court. Mark this date on your calendar the moment you receive the letter.

## What the EEOC Process Actually Looks Like

- **Day 1–30:** EEOC acknowledges your charge, assigns a number, notifies your employer.
- **30–90 days:** EEOC may offer mediation. You can accept or decline. Mediation is voluntary and confidential.
- **90+ days:** If no mediation or resolution, the EEOC investigates. This involves document requests, witness interviews, and fact-finding conferences. Investigations can take one to three years.
- **Resolution options:** The EEOC may find no violation and issue a "Dismissal and Notice of Rights" (giving you your Right to Sue). Or it may attempt conciliation between you and the employer. In rare cases, the EEOC may file a lawsuit directly on your behalf.

In most cases, the EEOC doesn't take your case to court. You get the Right to Sue letter and proceed yourself (or with an attorney). This is normal. Don't interpret it as a judgment on your case—the EEOC simply doesn't have the resources to litigate most individual claims.

## Action Steps

1. Download the EEOC Charge Form (Form 5) from [eeoc.gov](https://www.eeoc.gov).
2. Write your narrative using the guidelines above. Have someone review it for clarity before submitting.
3. File your charge in person or online at your local EEOC field office. Get a confirmation receipt with your charge number.
4. If you're in a state with a state fair employment agency, confirm whether you need to file separately or whether cross-filing is automatic.

5. Calendar the 180-day mark from your filing date. Request a Right to Sue letter on or after that date unless the EEOC has resolved your case before then.
6. Calendar the 90-day Right to Sue deadline the moment you receive the letter.



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## Chapter 8: File State Complaints and Understand Your Rights

### State Agencies: Parallel Systems, Parallel Rights

Every state except Alabama, Arkansas, Georgia, Mississippi, and Tennessee has its own fair employment agency. These state agencies often have the same jurisdiction as the EEOC over discrimination claims—but sometimes with broader protections, shorter timelines, or stronger remedies.

Filing with your state agency is important for two reasons:

1. It may be a jurisdictional prerequisite for state court claims, just as the EEOC filing is for federal court.
2. It creates a separate, parallel administrative record and may trigger a separate investigation with its own timeline and outcomes.

### Dual Filing: What It Means and Why It Matters

"Dual filing" means you file the same charge with both the EEOC and the state agency simultaneously. As noted above, the EEOC cross-files with most state agencies automatically—but not always, and not in every state.

**Check your state.** States where you may want to file directly with the state agency even if EEOC cross-files include California (the CRD has broader coverage), New York (the NYSDHR has a strong track record and provides stronger procedural protections in some cases), and states where you have additional claims under state

law that the EEOC doesn't cover (such as discrimination based on sexual orientation in states where that wasn't covered by federal law before *Bostock v. Clayton County*).

## State-Specific Protections to Look For

Review your state's fair employment law for categories not covered by federal law. Common examples include:

- **Marital status** discrimination (federal law doesn't cover it, but many states do)
- **Gender identity and expression** (before *Bostock*, many states were further ahead than federal law)
- **Domestic violence victim status**
- **Veterans' status**
- **Criminal history** (some states prohibit employment discrimination based on arrest records or certain convictions)
- **Height and weight** (Michigan and other states have specific provisions)

If any of these apply to your situation, your state claim may be stronger than your federal claim.

## State Filing Deadlines

State agency deadlines are often shorter than federal ones—sometimes as short as 180 or 300 days from the discriminatory act, which may coincide with or diverge from the federal deadline. In some states (California is a major example), the state filing deadline for FEHA claims is three years from the discriminatory act—significantly longer than the federal window.

This is why researching your specific state rules is not optional.

## Interaction With Federal Filing

When you file a federal EEOC charge that gets cross-filed with the state, the state generally "piggybacks" on the federal charge, meaning your state filing is treated as filed on the same date as your EEOC filing. This matters for statutes of limitation—if you later need to file a state tort claim, the earlier filing date can protect you.

However, if you file only with the state agency and the state defers to the EEOC (as some states do), you may need to file a separate EEOC charge to preserve federal claims. Don't rely on the state filing alone.

## Action Steps

1. Look up your state fair employment agency (search "[your state] civil rights division" or similar).
2. Research whether your state covers protected categories not covered by federal law that apply to your situation.
3. Confirm the state filing deadline and compare it to your federal deadline. Note the earlier deadline.
4. If your state has broader protections, file separately with the state agency in addition to your EEOC charge.
5. Keep confirmation numbers and receipts for all agency filings.



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## Chapter 9: Document Your Damages With Precision

### Why Damages Documentation Is Not an Afterthought

Your case file isn't just about what your employer did wrong. It's also about what it cost you. Every dollar you've lost, every benefit you've been denied, every medical expense you've incurred as a result of the wrongful termination—these are your damages, and they need to be documented as carefully as your discrimination evidence.

Damages in employment cases typically fall into several categories, and the strength of your documentation in each area directly affects your potential recovery.

### Economic Damages: What You've Actually Lost

This is the most concrete category. Document everything:

**Lost wages and salary.** Calculate the income you would have earned from the date of termination to the present, and into the future. Include base salary, bonuses, commissions, and overtime. If you received a raise or promotion that you were denied because of the termination, factor that in.

Get your documentation from: final pay stubs, W-2s from prior years, offer letters from jobs you subsequently applied to (accepted or rejected), pay stubs from any new employment you've found.

**Lost benefits.** Health insurance, retirement contributions, stock options, cell phone allowances, transit benefits, tuition reimbursement. Calculate the dollar value of benefits you lost.

**Out-of-pocket expenses incurred as a result of the termination.**

Job search costs, resume writers, relocation expenses if applicable, costs to transport children due to changed schedule, any medical expenses tied to the emotional toll of the termination.

**Mitigation obligation.** Here's a critical legal point: you have a duty to mitigate your damages. This means you must make reasonable efforts to find new employment. Document every job application, every interview, every offer you received and either accepted or declined (with reason). Failure to document mitigation efforts can reduce your damages award.

## **Front Pay and Back Pay**

**Back pay** is what you would have earned from the date of termination to the date of judgment or settlement. It includes wages, benefits, and can include the value of lost equity or bonuses.

**Front pay** is what you'll earn going forward if you're not reinstated to your job. Courts award front pay when reinstatement isn't feasible—because the employer-employee relationship is too damaged, because the position no longer exists, or because returning would be impractical. Front pay can cover months or years of future lost income.

Your documentation of front pay prospects should include your job search efforts, the jobs you applied for, comparable positions you were qualified for, and any expert testimony (economist or vocational expert) about your future earning capacity.

## **Emotional Distress Damages**

Many wrongful termination cases include emotional distress damages—compensation for anxiety, depression, humiliation, loss of reputation, and damage to personal relationships caused by the termination.

Document your emotional distress with:

- Medical records showing treatment for stress, anxiety, depression, or stress-related physical conditions after the termination
- A personal journal of your emotional state (dates, descriptions—not analysis)
- Statements from family members, friends, or coworkers about changes they observed in you
- Any medical expenses for therapy, medication, or treatment

Note: emotional distress damages are harder to prove without medical documentation. If you're experiencing significant emotional distress, please seek medical care regardless of your legal case. Your health comes first.

## **Punitive Damages**

Courts award punitive damages when the employer's conduct was particularly egregious—malicious, oppressive, or carried out with a reckless disregard for your rights. These are rare in employment cases and depend heavily on the specific facts. Don't count on

punitive damages, but do document any evidence of willful misconduct, repeated violations, or management's awareness of discriminatory conduct.

## Attorney's Fees and Costs

Under many employment discrimination statutes (Title VII, ADEA, ADA, FMLA), a prevailing plaintiff is entitled to attorney's fees and costs. If you win, the employer pays your legal fees. Keep every receipt, invoice, and expense record from your attorney (or, if representing yourself, your own case-related expenses).

## Action Steps

1. Create a **Damages** folder in your case file.
2. Calculate your total lost income from termination date to present, using pay stubs and tax returns as documentation.
3. Calculate the value of lost benefits (health insurance premiums, retirement contributions, etc.).
4. Keep a running log of every job application, interview, and job offer with dates and outcomes. This is your mitigation record.
5. Start a personal health log: note dates of any stress-related symptoms, medical appointments, or treatments.
6. Gather medical records if you sought treatment for emotional distress.
7. Track every out-of-pocket expense related to your job search and the termination.



**Key Takeaway for Part 3:** Filing your administrative complaints correctly is non-negotiable—it gates your entire case. Write your EEOC narrative carefully, meet every deadline, file in both federal and state systems where needed, and document your damages meticulously from day one. A strong case with weak process is a losing case.



# Part 4: Build Your Case File for an Attorney (Or for Yourself)

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By now, you have a well-organized evidence file, a master timeline, a witness log, identified legal claims with supporting evidence, filed administrative complaints, and a damages record. This part is about taking all of that and packaging it in a way that maximizes your leverage—whether you're walking into an attorney's office, negotiating a settlement, or building toward litigation.



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## Chapter 10: Prepare Your Case Summary

### The One-Page Narrative

Attorneys evaluating a wrongful termination case spend, on average, less than ten minutes on an initial case review. Many are handling 50 or more active files. If you hand them a disorganized stack of 200 screenshots and say "figure it out," most won't. What they want is a concise, well-structured case summary that tells them exactly what happened, why it's illegal, and what evidence supports it.

The ideal case summary is one to two pages, single-spaced. It should contain:

**Section 1: The Parties** Your name, title, dates of employment, date of termination, and the name and basic description of the employer.

**Section 2: The Legal Claims** A numbered list of the laws you believe were violated and the protected class or activity involved (e.g., "1. Title VII — Sex/Pregnancy Discrimination; 2. Title VII — Retaliation for internal HR complaint filed August 2024").



**Section 3: The Facts** A chronological narrative of the key events, written in plain language. Focus on the facts most relevant to each claim—the discriminatory statements, the differential treatment, the protected activity, the timing. Keep it tight.

**Section 4: The Evidence** A summary of your strongest evidence: documents, witnesses, and direct statements. Note where each piece is located in your case file.

**Section 5: The Damages** A brief summary of your economic losses, emotional distress, and any known front pay exposure.

## What Attorneys Are Actually Looking For

When an employment attorney reviews your case, they're asking five questions:

1. Do the facts fit the legal elements of a recognized claim?
2. Do you have documentary evidence, or is it primarily your word against theirs?
3. What does the timeline look like—is there a plausible connection between your protected status/activity and the adverse action?
4. Is the case within the statute of limitations?
5. Are there any procedural problems (failure to file with EEOC, missed deadlines)?

Your case summary should proactively address all five. If you've missed a deadline, say so—don't let an attorney discover it in the first five minutes of a consultation. Honesty upfront builds trust and lets the attorney assess real risk.

## **The "Weaknesses" Section**

Don't include one. Not in your case summary. This is for your own preparation, not for the attorney's review document. When you assess your case, be honest with yourself—but when you present it to an attorney, lead with your strengths. Let the attorney find the weaknesses.

## **Action Steps**

- 1.** Draft your one-to-two-page case summary using the structure above.
- 2.** Have someone (a trusted friend, a family member, ideally not an attorney you'll be hiring) read it for clarity.
- 3.** Prepare a full evidence index: a numbered list of every document in your case file, with a one-line description and folder location for each item.
- 4.** Organize your case file so the summary can reference specific documents by name ("See: Ex. 3 — Manager's January 15 email").
- 5.** Prepare two copies: one for yourself, one for the attorney consultation.

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## Chapter 11: Find and Approach the Right Attorney

### Why "Any Employment Lawyer" Is Not Enough

Wrongful termination law is a specialized practice area. You want someone who does this specifically—not a general personal injury attorney, not your cousin who does real estate closings, and not the first employment lawyer whose name pops up in a Google search. Look for:

- **Primary practice area is employment discrimination or wrongful termination** (not just "also does employment law")
- **Experience in your specific jurisdiction** (state and federal courts)
- **Experience with your specific type of claim** (e.g., pregnancy discrimination, disability accommodation, ADEA for age cases)
- **Trial experience** (many employment cases settle, but you want an attorney who can go to trial if needed—defense attorneys know the difference and treat your case differently when they know your attorney has a trial record)

### Where to Find the Right Attorney

**State bar referral services.** Nearly every state bar association runs a lawyer referral service. Many have employment law subdivisions. Search "State Bar of [your state] lawyer referral employment discrimination."

**EEOC's Judicial District Map.** The EEOC website lists attorneys who have expressed interest in employment discrimination cases by judicial circuit. It's not a recommendation, but it's a starting point.

**Local employment law attorneys.** Search "wrongful termination attorney [your city]" and look at multiple results. Read their case results, their bio, their articles. An attorney who has written about wrongful termination on their blog or spoken at employment law conferences is more likely to be current on the field.

**NELA and NELN.** The National Employment Lawyers Association is the premier organization for plaintiff's employment attorneys. Its membership directory is searchable by state and specialty. The National Employment Law Network is another resource with a strong referral component.

**Women's employment rights organizations.** If your case involves sex or pregnancy discrimination, organizations like A Better Balance, Legal Momentum, or local women's legal aid organizations may have referrals.

## The Initial Consultation

Most employment attorneys offer a free initial consultation—30 to 60 minutes where they assess your case and you assess them. Prepare for this meeting the same way you'd prepare for a job interview:

- Bring your case summary and evidence index
- Bring your deadline calendar (attorneys are very aware of statutes of limitation)
- Be ready to tell your story clearly and concisely
- Ask specific questions about their experience with your type of case
- Ask about their caseload and availability
- Ask about their fee structure

## Fee Structures in Employment Cases

Most employment discrimination attorneys work on **contingency**: they take a percentage of your recovery (typically 25–40%, depending on the stage at which the case resolves and the jurisdiction) and receive no fee if you lose. This means there's no

upfront cost to you—but it also means the attorney is making a business decision about whether your case is strong enough to take on.

Some attorneys charge **hourly** for certain services (case evaluation, EEOC filings, settlement negotiations), particularly if the case is weak or if they're being asked to do work that doesn't lead directly to a contingency fee recovery.

Understand the fee structure before you agree to representation. Get it in writing.

## Questions to Ask the Attorney

1. How many cases like mine have you handled in the past two years?
2. Have you tried employment discrimination cases to verdict? (If they say no, that's not disqualifying, but it's worth knowing.)
3. What's your realistic assessment of my case's strength?
4. What do you see as the biggest challenges or risks?
5. What will you need from me to represent you effectively?
6. What's your timeline expectation for this case?
7. How will we communicate, and how often?
8. What is your fee structure, and what costs am I responsible for?

## Action Steps

1. Compile a list of five to eight potential attorneys using the resources above.
2. Visit each attorney's website, read their bio, and note their experience areas and any published articles.
3. Schedule initial consultations with your top three picks.
4. Bring your case summary, evidence index, and deadline calendar to each consultation.
5. Ask the questions above. Evaluate not just their experience, but their communication style, responsiveness, and whether you feel respected.

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## Chapter 12: Organize for Settlement, Litigation, or Self-Representation

### Understanding Where Your Case Is Likely to Land

The vast majority of employment discrimination cases settle before trial. This is not a sign of weakness in your case—it's the reality of how the legal system works. Employers and their insurers make business decisions about settlement based on cost, risk, and reputational exposure. Your organized case file, your documented damages, and your clear narrative give you negotiating leverage whether the case settles in mediation, through a demand letter, or on the courthouse steps.

But you need to be prepared for the other scenarios too.

### Writing a Demand Letter

A demand letter is a formal statement of your claims, your damages, and your settlement demand, sent directly to the employer's legal counsel or HR. It opens the settlement negotiation process.

A strong demand letter includes:

- A brief, factual narrative of the wrongful termination (referencing your evidence without attaching everything)
- Identification of the applicable laws violated
- A clear statement of your total damages (back pay, front pay, emotional distress, attorney's fees)
- Your settlement demand (a specific dollar amount)
- A deadline for response (typically 14–30 days)
- A statement that you reserve all rights to pursue litigation if the matter is not resolved

Many attorneys write the demand letter as the opening move after receiving the Right to Sue letter. If you're representing yourself, the demand letter is your opening negotiation tool. Keep it professional and factual—this is a legal document, not a rant.

## Mediation: What to Expect

If the employer agrees to settle, mediation is often the next step. Mediation involves a neutral third party (a retired judge or experienced attorney) who facilitates settlement negotiations. You attend, the employer (or their attorney) attends, and both sides negotiate in a series of joint sessions and private caucuses.

Go into mediation knowing your walk-away number—the minimum you'd accept to resolve the case. Also know your BATNA (Best Alternative to a Negotiated Agreement): if mediation fails, your alternatives are continued litigation or dropping the case. Don't let a mediator pressure you into accepting a lowball offer.

## Preparing for Litigation

If settlement fails and you're proceeding with a lawsuit, the organization you've built in your case file becomes absolutely critical. Litigation involves:

- **Discovery:** Both sides exchange documents and take depositions. Your organized file makes this significantly easier and cheaper.
- **Motion practice:** The employer may file motions to dismiss or for summary judgment. Your attorney responds.
- **Trial:** If the case survives summary judgment, it goes to trial. Employment discrimination trials are bench trials (judge alone) or jury trials. Your attorney will advise on which to pursue.

## When You Might Represent Yourself

Self-representation in employment discrimination cases is possible but challenging. It is generally inadvisable if:

- The employer is represented by experienced defense counsel
- The case involves complex legal issues or multiple claims
- Your damages are significant

It may be more feasible if:

- Your case is straightforward and well-documented
- The amount at stake is small (though note: many attorneys take small cases on contingency because the damages add up)
- You have strong research and organizational skills and are willing to invest significant time

If you're considering self-representation, at minimum consult with one or two attorneys to get their honest assessment of whether you can handle it. Many offer flat-fee consultations specifically for this purpose.

## **Managing the Emotional Toll**

This guide is about legal process, but you need to know this: pursuing a wrongful termination case is exhausting. It takes months, sometimes years. It requires you to relive painful events, to have your character and performance scrutinized, and to face an adversarial system designed to wear you down.

Build support into this process. Lean on the witnesses and friends who've already supported you. Consider working with a therapist—not because anything is wrong with you, but because going through this process is genuinely stressful and you deserve support. Your emotional health is part of your damages, and treating it as secondary is a mistake.

## **Action Steps**

1. After your attorney consultation, decide whether to proceed with representation or self-representation.
2. If you proceed with an attorney, ask them to draft the demand letter or review yours if you're writing it yourself.
3. If mediation occurs, prepare a mediation statement (a brief outlining your case, evidence, and damages for the mediator) and know your walk-away number before you walk in.
4. If litigation proceeds, organize your case file for discovery—create a master exhibit list, organize depositions, and prepare a trial narrative.



5. Regardless of the path, build emotional support into your timeline: regular check-ins with trusted people, therapy if needed, and planned breaks from case-related work.



**Key Takeaway for Part 4:** The case you've built—organized evidence, documented damages, filed complaints, identified witnesses—is the foundation of everything that comes next. Package it clearly, find the right attorney, and enter every negotiation or courtroom with the preparation you've earned. You are not starting from zero. You never were.



## Conclusion

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If you've worked through this guide from the beginning, you are not the same person who opened it. You have a timeline instead of a vague memory of what happened. You have a folder full of evidence instead of a stack of deleted Slack messages and regret. You have a legal framework instead of a feeling. You have filed your complaints, documented your damages, and identified your witnesses. You've done in days what most people paralyzed by this situation never do.

Here's what comes next, in order:

**Right now:** If you haven't yet secured your evidence, stop reading and go do Chapter 1. Everything else depends on what you preserve in the next 24 to 48 hours.

**This week:** Calculate your statute of limitations deadline, mark it on your calendar in bold, and build in a buffer. File your EEOC charge if your deadline is approaching. Reach out to your key witnesses.

**This month:** Build your complete case file with the folder structure from Part 1. Draft your case summary and evidence index. Find and meet with at least one qualified employment attorney. File any state agency complaints that are required.

**This quarter:** Decide on your path—representation or self-representation. File your demand letter if appropriate. Proceed with the administrative process toward your Right to Sue letter if needed. Keep documenting your damages.

And one more thing: the path forward is not linear. Cases stall. Employers offer lowball settlements. Deadlines approach faster than expected. There will be moments when you doubt the whole thing. That's normal. The work you've already done—documenting, organizing, filing—means you have options even when the path gets rough.

You've already taken the hardest step, which was deciding that what happened to you deserves a serious response. Everything else is logistics.

**If you're looking for a checklist to keep with you as you work through each chapter, the companion Action Checklist covers every step in this guide with checkboxes, folder templates, deadline trackers, and resource links. It is the companion guide to this book—use them together.**



This guide provides general legal information and is not a substitute for legal advice from a licensed attorney. Employment discrimination law varies by state and is subject to change. Consult a qualified employment attorney in your jurisdiction for advice specific to your situation.